

The Port Of Paradip (Rates For The Use Of The Wharf) Rules, 1967

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The Port Of Paradip (Rates For The Use Of The Wharf) Rules, 1967

UNION OF INDIA

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The Port Of Paradip (Rates For The Use Of The Wharf) Rules, 1967

Rule THE-PORT-OF-PARADIP-RATES-FOR-THE-USE-OF-THE-WHARF-RULES-1967 of 1967

Published on 17 October 1967

Commenced on 17 October 1967

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The Port Of Paradip (Rates For The Use Of The Wharf) Rules, 1967

Published vide Notification Gazette of India, 1967, Part 2, Section 3(i), page 1728.

2031.

G.S.R. 1625, dated 17th October, 1967. - In exercise of the powers conferred by sub-section (1) of Sec. 6 of the Indian Ports Act, 1908 (15 of 1908), the Central Government hereby makes the following rules, the same having been previously published as required by sub-section (2) of the said section, namely :

1.

Short title and commencement.

(1)

These rules may be called the Port of Paradip (Rates for the Use of the Wharf) Rules, 1967.

(2)

They shall come into force at once.

2.

Fixation of rates for the use of the wharf.

- Subject to the provisions of these rules, the rates to be charged for the use of the wharf at the Port of Paradip shall be as specified in the Schedule (hereinafter referred to as the Schedule) hereto annexed.

3.

Bulk cargo.

- In the case of bulk cargo, dues shall be levied on manifested tonnage subject to the provisions of Note 2 below the schedule.

4.

Assessment of goods for shipment.

- All goods intended for shipment shall be assessed on Export Application and the wharf dues shall be paid before the goods are shipped.

5.

Assessment of goods landed.

- All goods landed within the port shall be assessed on Import Application and wharf dues shall be paid before the goods are removed outside the port.

6.

Wharf dues not leviable on ship's fittings, etc.

- Wharf dues shall not be leviable on bona fide ship's fittings, dunnage or provisions for the use of ships.

7.

Wharf dues on cargoes in port's transit areas.

- Wharf dues shall be payable on all cargoes admitted to the port's transit areas for shipment whether they are shipped or having been brought in are taken out without having been shipped except that in the case of cargoes intended for shipment and stored in rented spaces, warehouses or leased plots, wharf dues shall be levied at the time of shipment only.

8.

Goods consigned to or by administrator exempt from wharf dues.

- Goods consigned to or by the Administrator of the Port of Paradip shall be exempt from the levy of wharf dues.

9.

Tranship goods.

(1)

Cargo landed on and shipped from the wharf, except as otherwise provided, shall be charged full wharf dues as per the Schedule,

(2)

Through cargo originally manifested at the port of shipment for transshipment landed on the wharf and loaded into boats by Importers labour shall be charged full wharf dues as per the Schedule less fifteen per cent.

(3)

Cargo discharged overside into boats in docks and shipped overside in docks (ship to ship) shall be charged at half the wharf dues as per the Schedule except in respect of foodgrains manifested for Indian ports transhipped to smaller vessels from large tankers/bulk carriers which do not enter the harbour on arrival but complete their discharge/transshipment in the enclosed harbour.

(4)

Through cargo originally manifested at the port of shipment for transshipment discharged overside into boats in docks and landed on the wharf for subsequent shipment, when landed by importers labour shall be charged full wharf dues as per the Schedule less fifteen per cent.

(5)

Cargo manifested for "local" and subsequently amended at Paradip for "transshipment" shall be charged full wharf dues as per the Schedule less fifteen per cent, if the importers use their own labour for landing the goods from boats on the wharf or for loading goods from the wharf into boats.

(6)

Wharf dues shall be recovered at rupee one per tonne of foodgrains transhipped into a smaller vessel from a tanker/bulk carrier at the port :

Provided that when not less than twenty per cent of foodgrains manifested in the bulk carrier or tanker is landed in Paradip Port, the said amount of rupee one per tonne shall not be levied on the quantity over-carried to other Indian Ports:

Provided further that goods transhipped from the vessels discharging for ports outside India shall be charged at half the wharf dues.

10.

Questions as to classification of goods.

- If for the purpose of application of these rules any question arises as to the classification of any goods, it shall be referred to the Administration of the Port of Paradip for decision and the Administrator shall decide the question.

The Schedules

S.

No.

Description

of Articles

Unit

Rate

1

2

3

4

1.

Cement

1

tonne

4.50

2.

Chemicals

other than acids (in bags)

1

tonne

5.50

3.

Chemicals

other than acids (packed otherwise)

1

Cubic Metre

5.00

4.

Cloth

1

Cubic Metre

5.00

5.

Coal,

coke, charcoal in bulk

1

tonne

2.00

6.

Coconuts

1

Tonne

5.00

7.

Coir/Coir

products

1

Tonne

5.00

8.

Cotton,

raw

1

Cubic Metre

5.00

9.

Electrical

goods including insulators

1

Cubic Metre

4.00

10.

Fish,

raw, salted or dried.

1

Tonne

4.00

11.

Grains,

pulses and cereals of all types

1

Tonne

3.50

12.

Iron

and steel, angles, bars, beams, etc.

1

Tonne

4.00

13.

Jute,

raw.

1

Cubic Metre

3.00

14.

Leaves,

Kendu

1

Cubic Metre

3.00

15.

Machinery

and parts

1

Tonne

4.00

16.

Salt,

common-in bulk

1

Tonne

1.50

17.

Goods

not otherwise specified

1

Tonne

5.50

1

Cubic Metre

5.00

1000

litres

5.00

18.

Goods

unknown

1

Tonne

7.50

1

Cubic Metre

6.50

1000

litres

5.00

Note 1. - For the purpose of calculating the wharf dues the unit by weight shall be 1 tonne of 1000 kilograms, the unit by volume measurements shall be 1 cubic metre and unit by capacity measurement for liquids in bulk shall be 1000 litres.

Note 2. - For recovery of charges, the gross and not the net units of each package as specified in the relative invoice or other shipping document shall be taken, subject to test check by the port authorities. In the absence of these documents or the specification of the gross units therein, the units actually arrived at by test check shall be taken as the gross units.

Note 3. - In calculating the gross weight or measurement by volume or capacity of any individual item, fractions up to and including 0.5 shall be taken as 0.5 and fractions over 0.5 shall be taken as one unit.

Note 4. - On packages containing articles of a miscellaneous character, charges shall be levied at the rate applicable to the article on which the highest rate is chargeable.

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